



CINEFIL PRODUCERS PERFORMANCE LIMITED

REGISTERED COPYRIGHT SOCIETY UNDER SECTION 33 SUB-SECTION (3) OF COPYRIGHT ACT, 1957

BY MINISTRY OF COMMERCE AND INDUSTRY, GOVERNMENT OF INDIA

CIN: U74999MH2018PLC315350

GST: 27AAHCC7967Q1ZM

Email: admin@cinefilindia.com

Ref. No.: REF001

To,
surya
John Corp
123 Main St
Mumbai

Subject: Introduction letter for obtaining CINEFIL Licensing

Respected Sir / Madam,

This pertains to CINEFIL Producers Performance Ltd and outlines the legal framework governing CINEFIL. In this regard, we respectfully approach your esteemed office to explain CINEFIL's legal position concerning the issuance of the CINEFIL Performance License for Cinematograph Film Works (Video), along with the associated compliance requirements.

Brief Introduction - What is CINEFIL?

CINEFIL is a non-profit entity duly registered by the Central Government of India as Copyright Society, under Section 33(3) of the Copyright Act, 1957, through the Department for Promotion of Industry and Internal Trade (DPIIT), Ministry of Commerce and Industry and is authorised to issue and grant Public Performance Licenses for Cinematograph Film Works, including video content dedicated to safeguarding, monitoring, and enforcing the rights of our esteemed members, which include Film Producers.

Our society currently comprises no fewer than 800 members and represents approximately 10000 feature films produced by eminent and renowned film producers. For further details, please visit our website at www.cinefilindia.com. A copy of our registration certificate is annexed hereto as Schedule 1 for your reference.

CINEFIL licenses are required for any public performance or communication of cinematograph films to the public—both within India and internationally, which shall primarily cover the categories of Hotels, restaurants, clubs, exhibition / event venues, lounges, premium housing societies, tourist transport operators, public park authorities, malls, shopping center, resorts, stadiums, hospitals etc. and / or such similar avenues in respect to communication to public etc. as per the published Tariff scheme on our Website.

(next...)

Additional information, for Quick Reference

(a) FAQs from licensees

1. FAQ : If we already pay for a set-top box or cable service, do we still need a CINEFIL licence ?

Yes – paying for a set-top box subscription or cable connection fee does not remove the legal requirement to obtain a Cinefil licence if the content is being used in a public performance setting, such as in a hotel, restaurant, club, or any other commercial establishment.

Here's why:

1. Cable/DTH fees

- These fees are paid to the service provider (Tata Play, Jio, Airtel DTH, Hathaway, etc.) for delivering the broadcast signal under Broadcasting services. They cover your right to view the content privately (personal/domestic use).
- CINEFIL licence is in addition to any cable/DTH subscription, because you are publicly communicating the work, not just watching it privately.

2. Analogy :

- Think of it like playing a music CD or streaming music via YouTube in a restaurant. Thus, buying the CD or having access to YouTube does not give you the right to play it publicly for customers. You still require a public performance licence for the sound recording work as defined in Section 2(y)(iii) of the Copyright Act, 1957, from an authorised AUDIO copyright society / licensing body , such as PPL, RMPL, Novex, etc.
- In the same way, playing cinematograph film (VIDEO) content from your set-top box or cable connection in a public/commercial space requires a separate public performance VIDEO licence from the film's copyright owner or its authorised licensing body—such as CINEFIL Producers Performance Ltd—regardless of your cable/DTH subscription.
- CINEFIL collects for VIDEO segment , which is for Cinematograph Film work as defined u/s 2(y)(ii) the Copyright Act 1957.
- Therefore , even if you are paying for your cable/DTH subscription, you still need a CINEFIL licence for VIDEO segment , if you are using the content in a commercial or public performance environment.
- The Copyright Act 1957 is thus clearly divided into two parts:

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- (i) full copyright-protected works for authors and owners, w/s 13 of Copyright Act 1957, in which Copyright subsists and
- (ii) Special rights, such as those conferred on broadcasters under Section 37 of the Copyright Act, 1957, which are distinct from original copyright. Under Western copyright legislation also, such special rights are referred to as "neighbouring rights" rather than original copyright.

Significant judgement by Honourable Supreme Court of India:

In *Star India (P) Ltd. v. Department of Industrial Policy and Promotion* [(2019) SCC OnLine SC 1057], the Honourable Supreme Court examined the interplay between the Copyright Act, 1957, and the TRAI Act, 1997, particularly whether TRAI's regulations on broadcasting services infringe upon the copyright rights of broadcasters. The Court rightly held that while the Copyright Act protects the proprietary rights of broadcasters, the TRAI Act being a legislation rooted in public interest prevails in cases of inconsistency, especially regarding tariffs and pricing in broadcasting. **Citation:** Honorable Supreme Court of India, appeal No. 7326-27 of 2018

Importantly, the judgment focuses on the broadcast right by the Broadcasters as provided under Section 37 of the Copyright Act 1957 (a special right with a 25-year term) and does not dilute or negate the rights of authors or owners of original works in which copyright subsists given under Section 13 of Copyright Act 1957 (e.g., literary, musical, dramatic works) that enjoy a 60-year term.

The Court's ruling does not extend to or affect the collection of license fees by registered copyright societies by the Central Government like IPRS, RMPL (for Sound Recording Work), & CINEFIL for Cinematograph Film Work (VIDEO) under Section 33 of Copyright Act 1957, which remains outside TRAI's regulatory scope. TRAI regulates broadcasting as a telecom and consumer service, not copyright ownership or monetisation by Authors and Owners in which Copyright subsists.

Therefore, the legitimate public performance licenses sought by registered Copyright society -such as CINEFIL for cinematograph film (video) works– must continue to be obtained by users such as hotels, restaurants, and commercial establishments, as these pertain to rights that TRAI cannot override or regulate.

With the above explanation, is particularly relevant to your esteemed members. It appears that, under the pretext of invoking broadcasting rights under Section 37 of the Copyright Act, 1957, there has been an oversight of the legitimate rights of copyright owners and authors protected under Sections 13 and 14 of the Act in which the Copyright subsists. This omission disregards the infringement provisions and potentially attract the applicability of Section 69 of the Copyright Act, 1957, as deemed appropriate.



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2. FAQ - We only play news and sports channels on our TVs. Do we still need a licence from CINEFIL?

A: Yes.

- Most TVs in public spaces today are smart TVs or connected via set-top boxes, giving access to all types of content, including films, music, entertainment, sports, news, devotional content etc.
- Even if you intend to play only news or sports, the broadcast feed carries all channel signals, and your TVs are technically capable of showing them at any given time, which triggers the definition of Communication to the Public.
- Thus, no matter how the signal reaches your TV – whether via cable, satellite, internet, or smart TV – showing content on a screen in a public place is legally considered “communication to the public” under Section 2(ff) of the Copyright Act, 1957. This requires a proper public performance licence for any kind of diffusion, regardless of whether any member of the public actually sees, hears, or otherwise enjoys the work or performance so made available read with explanation thereof given by the Copyright statute on “Communication to the public”.
- In short: The “news and sports only” argument is not a valid exemption from licensing obligations of CINEFIL. In today’s technology-driven environment, the broadcast / display or diffusion of any channel content in a public space implicates the rights of authors and copyright owners, necessitating appropriate licensing of Cinematograph Films from CINEFIL as provided under the Copyright Act 1957, read with Copyright Rules thereof. Thus, accordingly, the assertion that only news and sports channels are played does not exempt an establishment from obtaining the licenses from CINEFIL.

3. FAQ - What are the consequences if CINEFIL licence is not Obtained ?

Any communication of CINEFIL’s cinematograph film works to the public without obtaining the requisite license constitutes a copyright infringement under Section 51 of the Copyright Act, 1957. Such unauthorised use is a criminal offence, punishable under Section 63 of the Act, which prescribes imprisonment and monetary fines. The Honourable Supreme Court of India, in Criminal Appeal No. 807 of 2022, has unequivocally reaffirmed that copyright infringement is a COGNIZABLE AND NON-BAILABLE OFFENCE, thereby reinforcing the criminal nature and seriousness of such violations. All individuals and entities are hereby advised to obtain the necessary licenses from CINEFIL prior to any public performance, broadcast, or communication to the public of cinematograph film works.

(b) Overview of the Public Performance Licensing ecosystem.

In the Indian copyright framework, the public performance licensing ecosystem comprises TWO primary constituents, based on the nature in which copyright subsists.

1. VIDEO (Cinematograph Film work)

- This refers to the cinematograph film work that includes Films, , music videos, etc. Public performance rights in cinematograph films are exclusively administered by: CINEFIL – a registered copyright society for Cinematograph Film Work (VIDEO), by Central Government (CG) under Section 33(3) of the Copyright Act, 1957.

2. AUDIO (Sound Recording Work)

- This category pertains to the sound recording component of AUDIO work.
- Public performance rights in sound recordings are administered by:
 - RMPL (Recorded Music Performance Limited) – a registered copyright society by CG for Sound Recording Work (AUDIO), under Section 33(3) of the Copyright Act, 1957.
 - PPL (Phonographic Performance Ltd) and NOVEX – both operate as copyright owners, but are not registered as copyright societies by the Central Government.

◦ Legal Distinction Between Video and Audio Works

It is important to note that:

- Cinematograph Film Works and Sound Recording Works are legally distinct and independent categories of copyrightable works.
- This is clearly defined under:
 - Section 2(y)(ii) and (iii) (definitions of works),
 - Read with Sections 13 and 14 (scope of copyright),
 - And reinforced under Section 13(4), which states that “The copyright in a cinematograph film or sound recording shall not affect the separate copyright in any underlying work (musical, literary, dramatic, etc.) that is included in whole or in part in the film or sound recording.”

◦ Active Related Collection Society for Underlying Works of Composers & Lyricist .

- IPRS (Indian Performing Right Society) – a registered copyright society by CG
 - For musical works (composers)
 - And literary works (lyrics, lyricists)
 - Registered under Section 33(3) of the Act.
 - IPRS primarily administers public performance rights on behalf of authors (composers and lyricists).

As on date, 3 Active Constituents in Public Performance Rights in which Copyright subsists.

In practice, the public performance collections, market operates with three distinct rights streams:

1. VIDEO – Cinematograph Film Work - CINEFIL - Registered Copyright Society by CG
2. AUDIO– Sound Recording Work - RMPL- Registered Copyright Society by CG / PPL & NOVEX as Unregistered Copyright Societies.
3. Underlying Works – Musical & Literary Rights (IPRS) , registered Copyright Society by CG)

Each of these categories in which Copyright subsists are legally distinct, and all licensing and enforcement must respect the separate rights vested in each type of work.



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Unlocking Video Public Performance Rights by CINEFIL and Transforming legitimate IP rights of Film Producers.

- While AUDIO public performance rights for sound recording works with underlying rights of musical and literary works, have been licensed in India since the mid-1990s by copyright licensing bodies such as PPL and IPRS, respectively.
- However, the VIDEO public performance licensing of cinematograph film works is a recent development, having commenced in 2023 by CINEFIL for Owners and Film Producers, who are Authors of Cinematograph Films.
- Although the Copyright Amendment, 1994 explicitly granted film producers the exclusive right to license the video public performance of their cinematograph film works, but this right remained largely not monetised in India until 2023, when producers—through CINEFIL—a Copyright Society registered by Central Government, began actively licensing, collecting and enforcing VIDEO public performance royalties from India and overseas markets.
- Thus, the market's long-standing acceptance of AUDIO public performance rights clearly establishes the precedent for recognising VIDEO public performance rights, both being equally protected under copyright law.
- In fact, video delivers a far greater commercial and experiential value than audio, making its licensing not only legally mandatory but also commercially undeniable.

Requirement and Immediate Attention Needed

- (a) It is mandatory to obtain a Public Performance Licence from CINEFIL for the screening of cinematograph film works (VIDEO). This requirement applies to all hotels and restaurants operated by your esteemed members – whether on a standalone basis or under corporate arrangements in the company's brand name, as applicable.
- (b) We urge to take prompt steps to inform and guide its members to ensure compliance without further delay, by obtaining CINEFIL License.

Urgent Action Required

- (a) We request that you to initiate the Public Performance Licence process with CINEFIL within Fifteen days of receipt of this communication to avoid the continued infringement of rights.
- (b) We remain available to provide further clarification, arrange discussions and / or meetings, or offer any material you may wish to circulate to your members.

Contacts



Area Sales Executive (for assistance):

- (i) Mr. Sarjeel Khan
(ii) Mob: 90047 56949 ✓

For CINEFIL Producers Performance Ltd

(S/d)

Satyam Raj

Executive Director

Phone 📞 9820202506

✉️ ed@cinefilindia.com

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Schedule 1

CINEFIL is a non-profit entity duly registered by the Central Government of India as Copyright Society, under Section 33(3) of the Copyright Act, 1957, through the Department for Promotion of Industry and Internal Trade (DPIIT), Ministry of Commerce and Industry



F. No. P.24029/31/2020-IPR-VII
GOVERNMENT OF INDIA
MINISTRY OF COMMERCE & INDUSTRY
DEPARTMENT OF INDUSTRY AND INTERNAL TRADE

IPR- COPYRIGHT

FORM X
[See rule 49]

CERTIFICATE OF REGISTRATION UNDER SECTION 33(3) OF THE COPYRIGHT ACT, 1957

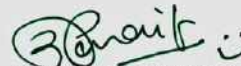
It is certified that **M/s Cinefil Producers Performance Limited** has been registered by the Central Government, *vide* Registration No. **CS/05/Cinematograph Film Works/2020** as a copyright society under sub-section (3) of section 33 of the Copyright Act, 1957 (14 of 1957) and permitted to commence and carry on the copyright business in **Cinematograph Film Works**.

The registration and the permission hereby granted are subject to the following conditions and liable to be cancelled on non-compliance with, or contravention of, any of them, namely:—

- (i) that the particulars furnished in the application are true and correct and not misleading in any manner; and
- (ii) that the copyright society shall duly comply with all the obligations imposed on it by or under the Copyright Act, 1957 (14 of 1957) and the Copyright Rules, 2013.



New Delhi
April 18, 2023


(Prof. (Dr.) Unnat P. Pandit)
Controller General of Patents, Designs, and Trademarks
Registrar of GI and Copyrights